

Banarasi Lal v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 25 September 2023 · 2023:AHC:185410-DB · WRIT - C No. - 30748 of 2023 · **Writ disposed on consent; fresh clause 6.14 application to be decided**

HEADNOTE

Writ disposed of on consent. A consumer who accepts outstanding electricity dues of Rs. 74,194 that block a new connection, and who seeks easy instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005 on account of financial hardship, must move a fresh application before the competent authority within one week. That authority shall decide the application so the dues may be deposited and the request for a fresh connection processed. The Court did not itself fix instalments or direct release of the connection.

FACTUAL SUMMARY

Banarasi Lal sought a mandamus to decide his application of 3 February 2023 and to restrain harassment over electricity bills issued after 10 November 2016. Counsel for respondent nos. 2 to 4 stated that Rs. 74,194 was outstanding and that the U.P. Electricity Supply Code, 2005 barred a new connection until those dues were cleared. The petitioner then offered to pay in easy instalments under clause 6.14, citing financial hardship. Counsel raised no objection and said a fresh application would be considered according to law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Fresh clause 6.14 application for instalments on accepted dues blocking a new connection

HOLDING

On consent, the writ was disposed of with the observation that if the petitioner moves a fresh application before the competent authority under clause 6.14 of the U.P. Electricity Supply Code, 2005 within one week, that authority shall dispose of it so the petitioner may deposit the outstanding dues and the authority may process the application for a fresh electricity connection. ¶ 7

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress A consumer who accepts outstanding dues but pleads financial hardship is relegated to a fresh clause 6.14 application for easy instalments, which the competent authority must decide. ¶ 5-7

clause-6.14-instalments-on-accepted-dues Once the consumer accepts the stated dues of Rs. 74,194 and seeks time to pay rather than disputing the bill, clause 6.14 is the route for instalments before a new connection is processed. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF ELECTRICITY BILLS ISSUED AFTER 10 NOVEMBER 2016, AND THE PRAYER TO RESTRAIN HARASSMENT ON THAT BASIS

The petitioner accepted the stated dues and sought instalments instead. ¶ 2

NOT DECIDED — WHETHER INSTALMENTS MUST BE GRANTED, ON WHAT TERMS, AND WHETHER A FRESH CONNECTION MUST FOLLOW

Left to the competent authority on the fresh clause 6.14 application. ¶ 7

